

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

September 8, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	21CV379107	Xingchuan Pei vs. Fanglei Liu	Defendant moves this court to set aside default judgment. Defendant asserts that he was not served this complaint because he had moved at the time of service from the address that is shown on the proof of service filed August 18, 2021. The proof of service was dated for April 14, 2020—an error since the case was not filed until April 5, 2021. Defendant asserts that he moved from the Ramona residence which was where the process server claims he was served in August 2020. Defendant asserts that he did not receive notice of judgment until he received a notice of levy on April 8, 2026. He then filed this motion on April 14, 2026. There is no opposition to this motion. Defendant’s motion is GRANTED.
9:00 2	23CV415166	Daniel Souza vs. Dan Smith	Plaintiff moves this court to tax costs. Defendant proffered \$5,967.53 for service of process, identifying invoices for service of deposition invoices. This category appears to be justified and will not be taxed. “Other” costs involves one invoice—medical examination of Plaintiff. The examination is billed from the doctor’s invoice and shared with co-defendant. This category will not be taxed. Plaintiff’s motion is DENIED.
9:00 3	24CV432080	Serenity MSO vs. Palo Alto Mind Body, et.al.	Defendant Palo Alto Mind Body moves this court to grant a stay of legal proceedings pending an appellate court decision. In this case, Defendant Palo Alto Mind Body moved this court to disqualify counsel because current counsel for Plaintiff Serenity had privileged emails in his possession at the time they were sent. The court denied Defendant’s motion deeming that Plaintiff’s attorney at the time had a joint privilege to the emails. This court cannot find that success on the merits of this case would be successful on appeal. Defendant’s motion is DENIED.
9:00 4	24CV446910	Ejigayehu Kebede vs. Bryan Reynolds, et.al.	Defendant Marilyn Reynolds moves this court to set aside default judgment. The application to set aside judgment was made within one day of the six month statutory limitation under CCP section 473(b). The court has the discretion to determine whether to grant relief to a party from default if the default was taken through “mistake, inadvertence, surprise, or excusable neglect” provided the application was made within a reasonable time period. This court cannot conclude that the motion to set aside was made within a reasonable time period. Specifically, defendant Marilyn Reynold’s new counsel James Arrasmith represented Ms. Reynolds since January 30, 2026—the motion was not filed until April 30, 2026. Defendant’s motion is DENIED. Defendant is ordered to pay attorney costs of \$3,250 and recoverable costs of \$65.00.
9:00 5	25CV469984	Vincent Daily vs Taylor Morrison of California	Plaintiff petitions this court to compel further responses. Plaintiff propounded form interrogatories No. 1.1., 15.1, 16..1-16.6, and 17.1.. Defendant asserted a privilege protection. No. 12.4 requested providing video which Defendant has asserted that it has provided. Plaintiff’s petition is DENIED.
9:00 6	25CV472823	Hank Wright vs. Nelson Holdo, et.al.	Plaintiff moves this court tp set aside dismissal. This case was scheduled for an order to show cause hearing. Plaintiff’s counsel failed to appear. However, Plaintiff failed to appear due to incorrectly logging into the wrong platform. By the time Plaintiff’s counsel corrected his mistake, the court had adjourned. Defendant filed no objection to this motion. This appears to be a clear case of inadvertence or mistake per CCP 473(b). Defendant’s motion is GRANTED.
9:00 7	2CV485862	Mihretab Yifter vs. Universal Protection Service, LP	See below.

9:00 8	26CV489051	Citibank vs. Jeannie Chan	See below.
9:01 1	24CV433018	ZCA Homes v. Venko Gospodinova, et.al.	Attorney for Defendant Rosita Gospodinova moves to withdraw as counsel. Ms. Rosita Gospodinova passed away. Attorney Tanner Brink's motion to withdraw is GRANTED.
9:01 2	24CV439264	Kirsty Graham vs. Jose Rivas	Plaintiff petitions this court for approval of compromise of claim for minor. Plaintiff is the Guardian Ad Litem for Lacey Graham who is a minor. The minor is a victim in an automobile accident that was settled. Plaintiff's petition is GRANTED.

Calendar Line 7

Case Name: Mihretab Yifter v. Universal Protection Service, LP et al.

Case No.: 26CV485862

BACKGROUND

Plaintiff Mihretab Yifter (“Plaintiff”) alleges Defendant Universal Protection Service, LP dba Allied Universal Security Services (“Defendant”) terminated him in retaliation for protected activity. On August 7, 2025, Plaintiff raised complaints of discriminatory and unfair treatment with Human Resources. (Complaint at ¶ 33.) That same day, the company removed him from his assigned worksite. (*Id.* at ¶ 49.) The following morning, Plaintiff had been barred from the worksite altogether. (*Id.* at ¶ 51.) Plaintiff was instructed to return his uniform and was not provided with any re-assignment. (*Id.* at ¶ 55.) Plaintiff was formally separated from his employment on September 30, 2025. (*Id.* at ¶ 65.)

Plaintiff exhausted his administrative remedies by filing a complaint with the California Civil Rights Department and obtained a Right-to-Sue notice on November 19, 2025. Plaintiff filed suit on February 2, 2026. In his complaint, Plaintiff alleges four causes of action for: (1) retaliation in violation of the Fair Employment and Housing Act (“FEHA”); (2) retaliation in violation of Labor Code section 1102.5; (3) failure to prevent retaliation; and (4) wrongful termination in violation of public policy.

Defendant now moves to compel arbitration of Plaintiff's claims pursuant to the California Arbitration Agreement ("the Agreement") executed by the parties. Having considered the Agreement and the circumstances of its execution, the court will deny the motion.

OBJECTIONS TO EVIDENCE

Plaintiff objects to the Declaration of Mindy Grinde. The Court rules on those objections as follows:

The Court does not consider Objection No. 1 because it does not quote or set forth the objectionable material as required by the California Rules of Court, rule 3.1354.

The Court notes the inconsistencies raised by Objection Nos. 2 and 3 but **OVERRULES** these objections.

LEGAL STANDARD

The Federal Arbitration Act ("FAA") applies. The Agreement provides that "[t]he interpretation and enforceability of this Agreement shall be governed by the Federal Arbitration Act." (Declaration of Mindy Grinde ["Grinde Decl."], Ex. B at ¶ 8.) Additionally, the FAA's term involving commerce is interpreted broadly. The basic coverage provision of the FAA "makes the law applicable to contracts evidencing a transaction 'involving commerce' (9 U.S.C. § 2), which language reflects that Congress intended the law's coverage to extend to the full reach of its commerce clause power." (*Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [internal citations omitted].) "Congress Commerce Clause power 'may be exercised in individual cases without showing any specific effect upon interstate commerce' if in the aggregate the economic activity in question would represent 'a general practice . . . subject to federal control.'" (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56-57 [quoting *Mandeville Island Farms, Inc. v. American Crystal Sugar Co.* (1948) 334 U.S. 219, 236].)

The Declaration of Mindy Grinde ("Grinde Declaration") provides, "Defendant provides security guard services in multiple states for various types of properties, including but not limited to, airports, retail centers, residential communities, office buildings, distribution/manufacturing facilities, and refiners. Defendant provides services to both California and non-California residents and regularly purchases goods from vendors located outside the state. Defendant is one

of the nation’s largest providers of security services.” (Grinde Decl. at ¶ 5.) These activities meet the broad definition for interstate commerce. In any event, “[e]mployment contracts, except for those covering workers engaged in transportation, are covered by the FAA.” (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289.)

Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093, citations omitted; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The parties entered into a valid agreement to arbitrate. Plaintiff affixed his signature to the Agreement on October 28, 2022.¹ (Grinde Decl., Ex. B.) “A party’s acceptance of an agreement to arbitrate may be express, as whether a party signs the agreement.” (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777.) Moreover, “[u]nder Civil Code section 1633.7 . . . an electronic signature has the same legal effect as a handwritten signature.” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The authenticity of an electronic signature may be established by detailing the “security precautions regarding transmission and use of an applicant’s unique username and password, as well as the steps an applicant would have to take to place his or her name on the signature line of the employment agreement.” (*Id.* at p. 1062.)

¹ Although Plaintiff notes that Defendant presents inconsistent signature dates, the Court accepts October 28, 2022 as the valid signature date since this is reflected on the Agreement that is timestamped and signed by Plaintiff and attached to the Grinde Declaration as Exhibit B.

In the Grinde Declaration, Ms. Grinde attests she is “familiar with iCIMS and the way Defendant onboards new employees and presents new-hire paperwork, including the arbitration agreement at issue in this case.” (Grinde Decl., at ¶ 8.) She describes the iCIMS system as “a password-protected online environment allowing prospective employees who have received a conditional employment offer from Defendant to electronically complete and execute onboarding forms.” (*Id.* at ¶ 10.) After a conditional offer, the Human Resources Coordinator “initiates the electronic onboarding process by emailing a link from iCIMS to the potential new employee’s designated email address.” (*Id.* at ¶ 11.) The applicant then logs in with “his or her unique username and password created at the time he or she applied for the position, and “only the potential new employee with his or her correct username and unique password may access his or her iCIMS account.” (*Ibid.*) Ms. Grinde adds that “no employee is able to alter or edit any iCIMS documents without leaving a thumbprint.” (*Ibid.*)

As for the Agreement itself, the employee must “view the entire text of the Agreement by scrolling down on the screen-page” before signing. (Grinde Decl. at ¶ 12.) The acknowledgment recites that the employee “understand that I am not required to accept this Agreement as a condition of employment with the Company and that acceptance is voluntary,” and “can choose to accept or decline the Agreement by selecting one of these options with my electronic signature.” (*Ibid.*, Ex. B.) Signing is completed by clicking “the ‘Accept and Sign’ box at the bottom of the last page,” which the form states “is equivalent to a handwritten signature.” (*Ibid.*) In the Agreement presented by Defendant, the signature block displays the “Accept and Sign” box checked with “Mihretab Yifter 10/28/2022 1:43 PM” next to it. (Grinde at ¶ 16, Ex. B.)

Plaintiff argues Defendant has failed to attach the iCIMS audit trail, access logs, IP address or device information, email/link transmission records, system screenshots, version history of the document, or records showing when Plaintiff received, opened, accepted, declined, or opted out of the Agreement. (Opposition at p. 12:1-3.) Nevertheless, the Court finds Ms. Grinde’s account of the iCIMS onboarding process as well as the signed and timestamped version of the Agreement sufficient to establish an agreement to arbitrate between the parties.

To the extent Plaintiff argues he does not recall signing the Agreement, “[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The general rule is that “one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language.” (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383.)

The Scope of the Agreement Does Not Cover Plaintiff’s Claims

At first blush, it appears the scope of the agreement covers Plaintiff’s claims. The Agreement provides, “[e]xamples of claims covered by this Agreement specifically include . . . claims for discrimination and/or harassment; claims for wrongful termination; claims relating to any offers, promotions, or transfers made by the company; claims for retaliation” (Grinde Decl., Ex. B at ¶ 3.) Plaintiff’s claims include retaliation in violation of FEHA and in violation of Labor Code section 1102.5, failure to prevent retaliation, and wrongful termination in violation of public policy. These claims undisputably fall within the scope of the Agreement.

However, paragraph six of the Agreement provides two limitations on the applicability of the Agreement. First, the Agreement states that it does not cover claims that are covered by an applicable collective bargaining agreement. (Grinde Decl., Ex. B at ¶ 6.) Plaintiff concedes that he does not bring wage and hour claims that are otherwise covered by the collective bargaining agreement. Rather, his claims are for retaliation and wrongful termination in violation of public policy. Article 25.11 of the collective bargaining agreement states “[i]n no event shall this Article or this agreement be read to construe a waiver of individual rights to pursue statutory employment discrimination claims through administrative proceedings or civil actions.” (Grinde Decl., Ex. A at p. 41.) Regardless, since the claims do not concern wage and hour claims covered by the collective bargaining agreement, they may be compelled to arbitration.

However, the second limitation is broader and brings the scope of the Agreement into question. The second limitation provides, “[a]dditionally, this Agreement does not apply to claims involving an employee who is covered by a collective bargaining agreement at the time the dispute arises or is filed.” (Grinde Decl., Ex. B at ¶ 6.) According to Defendant, Plaintiff

was hired as a Security Professional on October 28, 2022. (Grinde Decl. at ¶ 7.) He was then re-classified as a Shift Supervisor on July 7, 2023. (*Ibid.*) He was re-classified through self-demotion as a Security Professional on July 8, 2025. (*Ibid.*) Defendant specifically states, “Security Professionals in Silicon Valley, such as Plaintiff, were covered [by] a Collective Bargaining Agreement between Universal Protection Services LP dba Allied Universal Security Services and the Services Employees International Union, United Services Workers West.” (*Ibid.*) The dispute arose on or about August 7, 2025 at which time Plaintiff was covered by a collective bargaining agreement.

The second limitation does not just restrict the nature of the claims that are brought by employee, but it restricts application of the Agreement where the employee is simply covered by a collective bargaining agreement. Contrary to Defendant’s assertion that the first and second limitation are complementary, use of the word “additionally” indicates that the second limitation is supplementary and independent of the first limitation. The object of these two limitations are different. The object of the first limitation is the nature of the claims; whereas, the object of the second limitation is the employee. Taken together, the limitations restrict the arbitration of claims and/or persons covered by the collective bargaining agreement. An employee not covered by the collective bargaining agreement at the time of the dispute with claims falling outside the agreement would be subject to arbitration. However, these are not the facts here. Even if the claims do not fall within the collective bargaining agreement, the fact that Plaintiff was an employee covered by the collective bargaining agreement at the time the claim arose restricts arbitration under these circumstances. Based on this plain language and Defendant’s concession that Plaintiff was covered by a collective bargaining agreement at the time the dispute arose, the Court concludes the scope of the agreement does not reach Plaintiff. Plaintiff is specifically excluded by the Agreement. For these reasons, the Court DENIES the motion to compel arbitration. The Court need not consider the parties’ arguments on waiver and unconscionability.

CONCLUSION

The motion to compel arbitration is DENIED.

The Court will prepare the order.

Calendar Line 8

Case Name: *Citibank, N.A. v. Chan*

Case No.: 26CV489051

On March 11, 2026, plaintiff Citibank, N.A. (“Citibank”) filed a complaint against defendant Jeannie Y. Chan (“Chan”), asserting a cause of action for breach of a credit card agreement. A proof of service filed on March 23, 2026 states that Chan was personally served on March 21, 2026. On April 13, 2026, Chan filed an answer to the complaint. On April 20, 2026, Chan filed a motion to quash service of the summons and complaint on the ground that the court lacks personal jurisdiction over her due to improper service of process.

“[I]t has long been the rule in California that a party waives any objection to the court’s exercise of personal jurisdiction when the party makes a general appearance in the action.” (*Roy v. Super. Ct. (Lucky Star Industries, Inc.)* (2005) 127 Cal.App.4th 337, 341; see also *Fireman’s Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145 (stating that “[a] general appearance operates as a consent to jurisdiction of the person, dispensing with the requirement of service of process, and curing defects in service... a general appearance can make up for a complete failure to serve a summons”).) “An answer, of course, is such an appearance, as is expressly made clear by [Code of Civil Procedure] section 1014: ‘A defendant appears in an action when the defendant answers, demurs, [or] files a notice of motion to strike.’” (*Roy, supra*, 127 Cal.App.4th at p.341; see also *Batchelor v. Finn* (1959) 169 Cal.App.2d 410, 423 (stating that “[t]he filing of an answer is a general appearance”); see also *Neihaus v. Super. Ct. (Vaillancourt)* (1977) 69 Cal.App.3d 340, 345 (stating that “if such a defendant appears by formally answering a complaint, such an appearance is a general appearance and confers

jurisdiction upon the court where none existed before”).) “It has been long established by decisions of the courts of this state that where a defendant makes a general appearance by the filing of an answer, demurrer, or certain motions, he submits himself to the jurisdiction of the court irrespective of an attempt in the pleading to disclaim such submission or limit the appearance.” (*Neihaus, supra*, 69 Cal.App.3d at p.345.)

Here, Chan filed her answer and subsequently filed a motion to quash. Chan’s answer constitutes a general appearance and thus waives any objection to the court’s exercise of personal jurisdiction. Chan’s motion to quash is DENIED.

Plaintiff Citibank shall prepare and submit a proposed final order consistent with this tentative ruling.